



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 11 judgments on Tuesday 16 May 2017 and 81 judgments and / or decisions on Thursday 18 May 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 16 May 2017

[Sylla and Nollomont v. Belgium \(applications nos. 37768/13 and 36467/14\)](#)

The applicants are M. Sylla, a Malian and Guinean national, and S. Nollomont, a Belgian national. The case concerns their conditions of detention in Forest and Lantin Prisons.

Mr Sylla was detained in the D wing of Forest Prison. From 5 November 2012 to 24 January 2013 he shared a cell measuring 9 sq. m with two other inmates. Access to the recreation yard was limited to one hour a day, and no other activities took place outside the cell. Access to the showers was restricted to twice a week and clothing, sheets and towels were changed every three weeks.

Mr Nollomont is currently detained in Lantin Prison, in a cell measuring 8.8 sq. m which he shares with one other prisoner. Access to the recreation yard is limited to two one-hour periods per day, and no other communal activities are arranged. The toilets are located in the cell and are separated only by a wooden partition. The showers can be accessed twice a week and clothing, sheets and towels are changed once a month. Inmates are permitted to smoke in the cells, which are not fitted with smoke alarms.

Relying on Article 3 (prohibition of inhuman or degrading treatment) of the European Convention on Human Rights, the applicants complain about their conditions of detention.

[Gumeniuc v. the Republic of Moldova \(no. 48829/06\)](#)

The applicant, Andrei Gumeniuc, is a Moldovan national who was born in 1978 and lives in Călărăseuca (Moldova). In May 2006 a court ordered that he be arrested and detained for thirty days, because he had not paid a speeding fine of 60 Moldovan lei (about four euros). The hearing was held in the absence of the parties. Police then arrested and detained Mr Gumeniuc, but he suffered a heart attack nine hours later and was taken to hospital. He recovered shortly thereafter and was released. He complains that his detention was contrary to Article 5 § 1 (right to liberty and security) of the European Convention, because he was not informed about the court hearing when the detention was ordered, and he was unable to prepare for it or have a lawyer represent him.

[Romanescu v. Romania \(no. 78375/11\)](#)

The applicant, Marian Romanescu, is a Romanian national who was born in 1948 and lives in Bucharest. He complains of being ill-treated whilst held in illegal detention following the Romanian revolution of December 1989. At the time, Mr Romanescu was an officer of the Romanian State security forces ("Securitate"). Following the uprising, he was held in detention: first by army forces between 22 December and 23 December 1989, and then by the unit's commander from 25 December 1989 to 2 February 1990. During this time he was subjected to ill-treatment and consequently suffered from depression. Despite a long-running criminal investigation, no individuals were ever charged in relation to the incident. Relying on Article 3 (prohibition of ill-treatment),

Mr Romanescu complains that there was no effective, impartial and thorough investigation capable of leading to the punishment of those responsible for the harm he suffered. He also relies on Article 6 § 1 (right to a trial in a reasonable time) to complain about the length of the criminal proceedings, and Article 13 (right to an effective remedy) to complain that he had no access to an effective remedy.

[Pakhtusov v. Russia \(no. 11800/10\)](#)

The case concerns the ban on administrative detainees having family visits.

The applicant, Andrey Pakhtusov, is a Russian national who was born in 1984 and lives in Syktyvkar (Russia). He is a taxi driver and in July 2009 was found guilty of driving a vehicle after his licence had been withdrawn. Sentenced to 15 days' administrative detention, he submitted a request to have a family visit. The head of the detention unit turned the request down, stating that family visits were not provided for by law. His complaint before the domestic courts, lodged after his release, was dismissed on similar grounds. Ultimately, in October 2009 the Supreme Court upheld the lower court's decision, finding that Mr Pakhtusov had been denied a family visit because he had failed to provide any details about the relatives wishing to visit him.

Relying on Article 8 (right to private and family life), Mr Pakhtusov disputes the Supreme Court's finding, alleging that the relevant domestic law was interpreted as imposing a total ban on family visits for administrative detainees.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Padlewski v. Austria (no. 11553/11)

Yagodnikova v. Russia (no. 40671/09)

Zimonin and Others v. Russia (nos. 59291/13, 14639/14, and 14582/15)

Janković v. Serbia (no. 23915/15)

Aydın v. Turkey (no. 34170/07)

Baştürk v. Turkey (no. 11318/10)

Güner v. Turkey (no. 10914/11)

Thursday 18 May 2017

[Jóhannesson and Others v. Iceland \(no. 22007/11\)](#)

The application was lodged by two individuals and one company. Jón Ásgeir Jóhannesson and Tryggvi Jónsson are Icelandic nationals who were born in 1968 and 1955 and live in London and Reykjavík, respectively. Fjárfestingafélagið Gaumur was a private limited liability company registered in Iceland at the time the application was lodged. All three applicants complain that they were tried twice for the same offence of failing to make accurate declarations for tax assessments: first through the imposition of tax surcharges, and second through a subsequent criminal trial and conviction for aggravated tax offences. They complain that these two sets of proceedings had been based on identical facts, and violated their rights under Article 4 of Protocol No. 7 (right not to be tried or punished twice).

[Petrie v. Italy \(no. 25322/12\)](#)

The applicant, David Petrie, is a United Kingdom national who was born in 1951 and lives in Verona. He is Chair of the Association of Foreign Lecturers in Italy (ALLSI).

The case concerns the dismissal of an action for defamation brought by Mr Petrie.

On 26 February 1997, at a hearing of the Employment and Social Affairs Committee of the European Parliament concerning the position of non-Italian foreign lecturers working in Italian universities, Mr Petrie made the following remarks: “Now, how does this happen ? It happens because there is a system in Italy, and it’s difficult to translate, the word is ‘*raccomandazioni*’, it comes from the word ‘to recommend’.” X, Director-General of the department for university autonomy in the Italian Ministry of Universities and Scientific and Technological Research, and Y, a university Vice-Chancellor, were also present at the meeting.

On 23 January 1998 Mr Petrie took part in a public meeting organised by the University of Bologna during which X stated that “a lecturer present in the auditorium [had] accused Italy, in the European Parliament Committee in Brussels, of being a country run by the Mafia”. Believing himself to have been accused, Mr Petrie replied that he had never used the word “Mafia”, and asked X to withdraw his remarks. Y then intervened, claiming that X’s remarks were true. X and Y refused to withdraw their statements.

On 4 July 1998 Mr Petrie brought an action for damages in the Bologna District Court against X and Y, claiming that they had attributed remarks to him which he had never made and that his reputation, honour and personal identity had been damaged. On 6 April 2002 the District Court allowed his claims, finding that Mr Petrie had not said that Italy was “a country run by the Mafia”. It ordered X and Y jointly to pay Mr Petrie 19,000 euros (EUR) in respect of non-pecuniary damage and EUR 6,520 in legal costs. X and Y appealed against that judgment to the Bologna Court of Appeal, which allowed their appeal and dismissed Mr Petrie’s action for defamation. Mr Petrie was ordered to repay the court costs incurred by X and Y (EUR 4,500). He appealed unsuccessfully on points of law.

Relying on Article 8 (right to respect for private and family life), Mr Petrie argues that the dismissal of his action for defamation amounted to unjustified interference with his right to protection of his reputation and his right to respect for his private life.

[Bože v. Latvia \(no. 40927/05\)](#)

The applicant, Valdis Boze, is a Latvian national who was born in 1958 and lives in Riga. The case concerns his complaint about a search and seizure in his apartment.

In June 2004 the police carried out an undercover investigation into an allegation that Mr Boze was selling unlicensed medicine for treating HIV, hepatitis and cancer via the Internet. The undercover officers arranged to meet Mr Boze near his apartment and bought some of the medicine. They immediately told him about the operation and proceeded to carry out an inspection of his apartment. Mr Boze was informed that the inspection of his home was to be carried out under the relevant provisions of the Code of Criminal Procedure. The inspection, lasting five hours, resulted in the seizure of a number of items, including Mr Boze’s computer and computer hard drive. He was subsequently fined in two sets of administrative proceedings for manufacturing and selling unauthorised pharmaceutical products. In the meantime, Mr Boze had submitted various complaints to both the police and prosecuting authorities, alleging that the inspection had amounted to a search and that this search had been unlawful. All his complaints were however dismissed, the authorities finding that the inspection and seizure had been in accordance with the relevant provisions of the Law on the Police.

Relying on Article 8 (right to respect for private and family life, the home and the correspondence) and Article 13 (right to an effective remedy), Mr Boze alleges that the search of his apartment and the seizure of his personal belongings were not authorised by law.

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Nikoghosyan v. Armenia (no. 75651/11)
Šahman v. Bosnia and Herzegovina (no. 40110/16)
E.H. and Others v. France (no. 32731/15)
Soltani v. France (no. 40568/14)
Andreadou and Others v. Greece (no. 40676/13)
Chasapis v. Greece (no. 58414/16)
Dimitriou and Others v. Greece (no. 32398/11)
Dimitsa and Tsakirellis v. Greece (nos. 41939/10 and 42196/11)
F.G. v. Greece (no. 58740/11)
G.T. v. Greece (no. 56847/13)
Hadjidemetriou Evgeniou v. Greece (no. 67621/10)
Lamda Vita AEE v. Greece (no. 57681/12)
Panagiotas v. Greece (no. 54007/12)
S.G. v. Greece (no. 46558/12)
A.D. v. Hungary (no. 23546/14)
A.V. v. Hungary (no. 73709/13)
Baranyne Marton v. Hungary (no. 56479/13)
E.J.S. v. Hungary (no. 58874/13)
Hodosi v. Hungary (no. 33204/14)
J.Z. v. Hungary (no. 45457/13)
K.Z. v. Hungary (no. 48496/13)
Mudra v. Hungary (no. 77249/13)
Pappne Fulop v. Hungary (no. 54331/13)
Risi v. Hungary (no. 29257/14)
Roman v. Hungary (no. 76212/13)
Szabó v. Hungary (no. 29264/14)
T.C. v. Hungary (no. 59417/13)
Toth v. Hungary (no. 50596/13)
Z.Z. v. Hungary (no. 44021/13)
Blehein v. Ireland (no. 14704/16)
Scozzafava and Others v. Italy (no. 20014/13)
Tuziks v. Latvia (no. 30006/09)
Bykova and Makhotkina v. Lithuania (no. 10462/10)
Nicolas and Boulevardpresse Sàrl v. Luxembourg (nos. 66992/13 and 66995/13)
Enachi v. the Republic of Moldova (no. 4797/15)
Mielniczek v. Poland (no. 65947/14)
Chiş and Others v. Romania (nos. 36129/15, 37641/15, 9369/16, 16961/16, 25292/16, 27815/16, 29928/16, and 40948/16)
Cioban v. Romania (no. 58616/13)
Gabrea and Others v. Romania (no. 51157/10)
Mihai and Others v. Romania (nos. 44596/15, 6299/16, and 9599/16)
Ovidiu Gândilă v. Romania (no. 17367/15)
Rusu v. Romania (no. 58137/15)
Stana and Others v. Romania (nos. 66120/13, 61030/14, 43939/15, 54177/15, and 62539/15)
Danilov and Others v. Russia (nos. 355/16, 619/16, 1079/16, 2930/16, 4415/16, and 7249/16)
Kamshilin and Others v. Russia (nos. 33050/08, 9891/10, 43321/15, and 5347/16)

Malakhov v. Russia (no. 8566/13)
Malkovich and Others v. Russia (nos. 28880/10, 54053/10, 55186/13, 60317/15, and 5169/16)
Mikhaylovskiy and Lazin v. Russia (nos. 73268/10 and 30445/12)
Shilova and Others v. Russia (nos. 36600/11, 37373/11, 37868/11, 38380/11, 38878/11, 39443/11, 39753/11, 43361/11, 74900/11, 3259/12, 21923/12, 23439/12, 30848/12, 40625/12, and 59737/13)
Terekhov and Others v. Russia (nos. 4465/09, 38248/09, 37056/10, 65271/10, 69597/10, 1693/11, 7540/11, 12501/11, 12504/11, 12507/11, 18640/11, 28029/11, 31065/11, 31398/11, 34994/11, and 20903/14)
Vetrov and Others v. Russia (nos. 10067/04, 8241/05, 39912/05, 1244/06, 6587/06, 13537/06, 35571/06, 40917/06, 49281/06, 13869/07, 17650/07, 23145/07, and 36291/07)
Zhikhar and Others v. Russia (nos. 10623/08, 35259/08, 53215/08, 55708/08, and 29317/16)
Croatian Chamber of Economy v. Serbia (no. 819/08)
Radosavljević v. Serbia (no. 17055/09)
A.T. v. Sweden (no. 78701/14)
Saliu v. ‘the former Yugoslav Republic of Macedonia’ (no. 26491/13)
Serafimovska v. ‘the former Yugoslav Republic of Macedonia’ (no. 33462/15)
Akgüç v. Turkey (no. 55559/11)
Avcı v. Turkey (no. 38390/09)
Cakar v. Turkey (no. 47136/06)
Çalışkan and Others v. Turkey (nos. 14524/05, 13984/06, 15770/07, 55035/07, 9180/08, and 58633/09)
Güçlü v. Turkey (no. 45202/07)
Holmatova and Others v. Turkey (no. 14355/13)
İpseftel v. Turkey (nos. 20462/04 and 21405/04)
Kabal and Others v. Turkey (nos. 31257/09, 31264/09, 31293/09, and 31308/09)
Kaya v. Turkey (no. 27774/11)
Khasanova v. Turkey (no. 40072/11)
Malhas v. Turkey (no. 41367/05)
Usta and Bayraktar v. Turkey (no. 34686/07)
Babenko and Others v. Ukraine (nos. 9069/08, 49128/08, 32425/10, 10330/13, and 76305/13)
Pivdenbudtrans, ZAT and Others v. Ukraine (nos. 29455/06, 53152/08, 53995/08, 14819/09, 45037/14, 72724/14, 3416/15 and 37977/16)
Rybalkin and Others v. Ukraine (nos. 10771/06, 2738/07, 34640/07, 38519/07, 51948/08, 55948/09, and 52228/14)
Shamray and Others v. Ukraine (nos. 15918/07, 39085/07, 52870/08, 2523/09, 11171/09, 44694/10, 17285/11, and 29774/16)
Sherstneva and Others v. Ukraine (nos. 43076/07, 27297/08, 29804/08, 51120/08, 3141/10, 41803/11, and 71847/12)
Skotarenko v. Ukraine (no. 63933/13)
Zenin v. Ukraine (no. 72609/12)
Draga v. the United Kingdom (no. 33341/13)
Thomas v. the United Kingdom (no. 24344/08)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.